

contain specific facts of when the two properties were severed from joint ownership. It fails to identify specific facts as to how the property use was open, notorious, continuous, and adverse for an uninterrupted period of five years after the unknown severance date. Conclusory allegations are insufficient. *Hood, supra* 65 Cal.App.4th at 438. Cross-Complainant must provide specific facts to establish a right to a prescriptive easement including how it was obtained, who were the owners of the property and specific facts to show an open, notorious, continuous and adverse use for an uninterrupted period of five years. At best, Cross-Complainant potentially alleges he obtained the prescriptive easement against PG&E, the prior owner of the Cal Fire property, but such a prescriptive easement would appear to be barred by Civil Code 1007. The Court finds that Cross-Complainant has failed to allege sufficient facts to constitute a cause of action for a prescriptive easement. CCP § 430.10(e)

Second Cause of action (Implied Easement): An easement by implication requires: 1) a common ownership of a parcel and transfer or conveyance of one parcel or portion; 2) prior to the division of title, there must have been an existing obvious and apparently permanent, use of the quasi-easement by the common owner; 3) the easement must be reasonably necessary to the use and benefit of the quasi-dominant tenement. *Moore v. Walsh* (1995) 38 Cal.App.4th 1046, 1049. The FACC fails to allege each of the elements above. While the FACC makes conclusory statements about the history of the subject property and the property of Cal Fire, the chain of title has not been provided to show exactly when and how the property was subdivided. There are no allegations about the existence of the alleged easement, that it was obvious and apparently permanent or that it was reasonably necessary to the use and benefit of the quasi-dominant tenement. The Court finds that Cross-Complainant has failed to allege sufficient facts to constitute a cause of action for an implied easement. CCP § 430.10(e)

Civil Code Section 1007: Cross-Defendant argues that the entire FACC is barred by Civil Code § 1007 which prohibits obtain prescriptive rights over property dedicated to a public use by a public utility or dedicated or owed by the state. As the FACC does not sufficiently allege when the easement rights arose and who the owner of the properties would have been at that time, the Court cannot determine whether Civil Code section 1007 applies. The Court reserves the right to issue a substantive ruling on this issue based on clearer factual allegations.

Water Rights: While the FACC contains allegations about access to the tributary for maintenance it also contains various allegations about the right to the water of the Pit River. The FACC fails to allege facts establishing riparian rights on the Cal Fire property (as opposed to riparian rights on his own property) and fails to provide facts to establish an appropriative right on the Cal Fire property. The FACC only contains unsupported conclusions about the nature of the water rights. Given that the water rights are interrelated to the access and maintenance rights they will need to be sufficiently alleged with supporting facts to survive a demurrer.

The demurrer is **SUSTAINED**. The Court will grant Cross-Complainant leave to amend to address the issues raised above. The Court recognizes that this will be the second time that a demurrer has been sustained with leave to amend granted. At some point, should cross-complainant not be able to allege sufficient facts to survive a demurrer, further leave to amend may be denied.

Cross-Complainant is granted 30 days from service of the notice of entry of order to file a Second Amended Cross-Complaint. No proposed order was lodged with the Court. Cross-Defendant shall prepare the order.

TOMLINSON VS. DENTZ CUSTOMS & COLLISION, ET AL.

CASE NUMBER: 26CV-0210413

Tentative Ruling on Request for Supplemental Injunction: Plaintiff Charles Tomlinson seeks an injunction for the return or preservation of his vehicle alleged to be in the possession of Defendants, Dentz Customs &

Collision, Ryan Dale and Wendy Correa. No opposition has been filed. The proof of services for the “request” show service of a “proposed” supplemental injunction. It is unclear if the “proposed” documents served are the same as the documents filed with the Court. Additionally, the “proposed” supplemental injunction was served on May 26, 2026 but the current request was not filed until June 30, 2026. There is insufficient evidence to show that the Defendants were given notice of the current request and hearing date. The Court denies the motion due to lack of proper service.

Additionally, the request is unsupported by any evidence. No declaration was filed. The Court is without any evidence to find that the issuance of an injunction would be proper under the circumstances. The Court further notes that the request fails to provide any authority upon which it is based. In addition to the procedural defects noted above, the Court denies the motion on the merits due to lack of evidence and authority.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the denial.

WESLEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0207455

Tentative Ruling on Motions to be Relieved as Counsel: Asher Y. Hoffman from Law Offices of Asher Hoffman, APC moves to be relieved as counsel for Plaintiff Kathryn Wesley. As a preliminary matter, two separate Motions to be Relieved as Counsel were filed on 26, 2026.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). The first motion is the MC-051 and MC-052 filed separately. The MC-053 is lodged. A Proof of Service was filed on June 26, 2026 indicating that the MC-051 was personally served on Plaintiff on June 25, 2026. The second filing has the MC-051, MC-052, and MC-053 all stapled as one packet along with a Proof of Service indicating electronic service on Plaintiff and Defendants on June 24, 2026. While Defendants can be served electronically through counsel, there is no indication in the file that Plaintiff has agreed to accept electronic service. Plaintiff must expressly agree to accept electronic service directly on Plaintiff, as opposed to service through counsel, in order for electronic service to be valid. CCP § 1010.6. Because electronic service on Plaintiff was invalid and because the Proof of Service filed June 26, 2026 only indicates that the MC-051 was personally served, the matter has not been properly served. All three documents must be served on the client per CRC 3.1362(d).

The motions are **DENIED** without prejudice. The Court cannot modify the proposed Orders submitted. Plaintiff's counsel is to prepare the Orders. The Court confirms the review hearing on **Monday, September 28, 2026 at 9:00 a.m. in Department 63.**